

[1 EDW. 8. &
1 GEO. 6.]

*Wadebridge Rural
District Council Act, 1937.*

[Ch. xcii.]



CHAPTER xcii.

An Act to confer powers on the Wadebridge Rural District Council with reference to the construction of waterworks and the supply of water and for other purposes. A.D. 1937.
[20th July 1937.]

WHEREAS the rural district of Wadebridge in the county of Cornwall is under the jurisdiction of the Wadebridge Rural District Council (hereinafter referred to as "the Council") and it is the duty of the Council to secure that the said district is supplied with water :

And whereas certain parts of the said district are without an adequate supply of water and it is expedient to empower the Council to construct waterworks and to supply water as in this Act provided :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Council for the purposes hereinafter mentioned and such estimates are as follows :—

For the construction of the waterworks	£
authorised by this Act - - -	45,253
Water mains and other waterworks	
purposes - - - - -	33,840
A	1

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And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

23 & 24
Geo. 5. c. 51.

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 so far as the same are applicable have been observed :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the county council of the administrative county of Cornwall which plans sections and book of reference are in this Act respectively referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.

PRELIMINARY.

Short title
and date of
commence-
ment.

1. This Act may be cited as the Wadebridge Rural District Council Act 1937 and shall come into operation on the first day of October nineteen hundred and thirty-seven.

Division of
Act into
Parts.

2. This Act is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Waterworks.

Part III.—Lands.

Part IV.—Supply of water.

Part V.—Financial.

Part VI.—Miscellaneous.

Incorporation
of Acts.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not

inconsistent with the provisions of this Act) are hereby A.D. 1937.
incorporated with this Act (namely):—

(1) The Lands Clauses Acts with the following
exceptions and modifications:—

PART I.
—cont.

(a) Sections 127 to 131 of the Lands 8 & 9 Vict.
Clauses Consolidation Act 1845 are not in- c. 18.
corporated with this Act;

(b) The bond required by section 85 of the
Lands Clauses Consolidation Act 1845 shall
be sufficient without the addition of the
sureties mentioned in that section:

(2) The Waterworks Clauses Act 1847 except— 10 & 11 Vict.

(a) the words “ with the consent in writing
“ of the owner or reputed owner of any such
“ house or of the agent of such owner ” in
section 44;

c. 17.

(b) sections 75 to 82 (with respect to the
amount of profit to be received by the
undertakers when the waterworks are carried
on for their benefit); and

(c) section 83 (with respect to the yearly
receipt and expenditure of the undertakers):

(3) The Waterworks Clauses Act 1863; and

26 & 27 Vict.
c. 93.

(4) The provisions of the Railways Clauses Con-
solidation Act 1845 with respect to the temporary
occupation of lands near the railway during
the construction thereof.

8 & 9 Vict.
c. 20.

4.—(1) In this Act the several words and expressions Interpretation.
to which meanings are assigned by the Acts wholly or
partially incorporated herewith have the same respective
meanings unless there be something in the subject or
context repugnant to such construction.

(2) In this Act unless the subject or context other-
wise requires—

“ The Council ” means the Wadebridge Rural
District Council;

“ The district ” means the rural district of Wade-
bridge as for the time being constituted;

“ The clerk ” and “ the treasurer ” mean respec-
tively the clerk and the treasurer of the Council;

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PART I.
—cont.9 & 10 Geo. 5.
c. 57.26 Geo. 5. &
1 Edw. 8.
c. 49.

“The general rate fund” and “the general rate” mean respectively the general rate fund and the general rate of the district;

“The county council” means the county council of the administrative county of Cornwall;

“The Lands Clauses Acts” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 and by this Act;

“The tribunal” means the arbitrator or other authority to whom any question of disputed purchase money or compensation under this Act is referred in pursuance of the Acquisition of Land (Assessment of Compensation) Act 1919;

“The Act of 1933” means the Local Government Act 1933;

“The Act of 1936” means the Public Health Act 1936;

“The water undertaking” means the water undertaking of the Council authorised by this Act;

“The limits of supply” means the limits within which the Council are authorised by this Act to supply water;

“Special services” means the services for the time being provided by the Council for and in connection with—

(a) the supply of water under the Act of 1936 or any Act repealed by that Act;

(b) the provision of works of sewerage and sewage disposal;

(c) public lighting;

(d) the removal of house refuse from premises and the cleansing of earthclosets privies and ashpits; or

(e) any other services the expenses of which are by section 190 of the Act of 1933 or any other enactment required to be a separate charge on one or more contributory places in the district;

except such services the expenses of which the Council may for the time being determine to defray as part of their expenditure for general purposes under section 190 of the Act of 1933 or under any other enactment;

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PART I.
—cont.

“Specified parishes” means the parishes or contributory places on which the expenses of the special services respectively are for the time being chargeable;

“Gross value” and “net annual value” have the same meanings as in the Rating and Valuation Act 1925;

15 & 16
Geo. 5. c. 90.

“House” means a dwelling-house whether a private dwelling-house or not;

“Land” includes any interest in land and any easement or right in to or over land;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed but does not include the power to borrow by way of temporary loan which is conferred by paragraph (a) of subsection (1) of section 215 of the Act of 1933;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation

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PART I.

—cont.

38 & 39 Vict.
c. 83.

or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Council;

“Revenues of the Council” has the meaning assigned to “revenues” by section 218 of the Act of 1933;

“The Minister” means the Minister of Health;

41 & 42 Vict.
c. 76.

“Telegraphic line” has the same meaning as in the Telegraph Act 1878.

(3) For the purposes of this Act the expressions “the promoters of the undertaking” “the company” and “the undertakers” in the Lands Clauses Acts the Railways Clauses Consolidation Act 1845 and the Waterworks Clauses Acts 1847 and 1863 shall respectively be construed to mean the Council and the expression “the railway” shall be construed to mean the waterworks authorised by this Act and “the centre of the railway” shall be construed to mean the centre lines of such waterworks.

PART II.

WATERWORKS.

Power to
make water-
works.

5.—(1) Subject to the provisions of this Act the Council may make and maintain and from time to time alter renew and reconstruct in the lines and situations and upon the lands delineated on the deposited plans and described in the deposited book of reference and according to the levels shown on the deposited sections the waterworks hereinafter described:—

In the rural districts of Camelford and Wadebridge—

Work No. 1 An intake and weir partly in the parish of St. Breward in the rural district of Camelford and partly in the parish of Blisland in the rural district of Wadebridge to be constructed across the river De Lank at a point 27 yards or thereabouts measured in an easterly direction from the south-west corner of the enclosure numbered in the said parish of St. Breward 1756 on the 1/2500

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Ordnance map (Cornwall sheet No. XXI.9 A.D. 1937.
2nd edition of 1906);

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PART II.
—cont.

Work No. 2 A conduit or line or lines of pipes commencing in the said parish of St. Breward in the rural district of Camelford at the intake and weir (Work No. 1) hereinbefore described passing thence through the parishes of St. Tudy St. Mabyn Egloshayle St. Breock Wadebridge and St. Issey in the rural district of Wadebridge and terminating in the intended service reservoir (Work No. 3) hereinafter described;

In the rural district of Wadebridge—

Work No. 3 A service reservoir in the said parish of St. Issey in the enclosures numbered in the said parish 675 and 703 on the 1/2500 Ordnance map (Cornwall sheet No. XXV.9 2nd edition of 1907);

Work No. 4 A conduit or line or lines of pipes commencing in the said parish of St. Issey in the public road adjacent to the enclosure numbered in the said parish 37 on the 1/2500 Ordnance map (Cornwall sheet No. XXIV.7 2nd edition of 1907) passing thence through the parish of St. Ervan and terminating in the parish of St. Merryn in the public road adjacent to the enclosure numbered in the said parish 621 on the 1/2500 Ordnance map (Cornwall sheet No. XXIV.6 2nd edition of 1907);

Work No. 5 A conduit or line or lines of pipes in the said parish of St. Tudy commencing by a junction with Work No. 2 hereinbefore described adjacent to the enclosure numbered in the said parish 813 on the 1/2500 Ordnance map (Cornwall sheet No. XX.14 2nd edition of 1907) and terminating in the public road adjacent to the enclosure numbered in the said parish 629 on the said Ordnance sheet.

(2) The Council may upon lands acquired by them for the purposes of or in connection with the water undertaking under the provisions of this Act make and

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PART II.
—cont.

maintain and from time to time alter renew and reconstruct all such works and conveniences as they may consider necessary or convenient in connection with or subsidiary to the waterworks authorised by this Act or for obtaining access to inspecting maintaining repairing cleansing managing working or using the same or any of them :

Provided that—

- (a) nothing in this subsection shall exonerate the Council from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them;
- (b) any electric apparatus shall be so made maintained and used as not to cause any interference with any telegraphic line belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.

Limits of
deviation
for water-
works.

6. In the construction of the waterworks authorised by this Act the Council may deviate to any extent not exceeding the limits of lateral deviation shown on the deposited plans and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding six feet upwards and to any extent downwards :

Provided that except for the purpose of crossing over a stream no part of any conduit or line or lines of pipes shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections :

Provided also that no such deviation either lateral or vertical below high-water mark of ordinary spring tides shall be made without the consent in writing of the Board of Trade.

Period for
completion
of works.

7. If the waterworks authorised by this Act are not completed within the period expiring on the first day of October nineteen hundred and forty-three then on the expiration of that period the powers by this Act granted for the making thereof or otherwise in relation

thereto shall cease except as to such of them or so much thereof respectively as shall then be completed : A.D. 1937.

Provided that the Council may extend enlarge alter reconstruct renew or remove any of the said works and in the case of the lines of pipes lay down additional lines of pipes as and when occasion may require.

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PART II.
—cont.

8. Subject to the provisions of this Act the Council may collect impound take use divert and appropriate for the purposes of their waterworks or for any purposes of this Act the waters of the river De Lank and its tributaries. Power to take waters.

9.—(1) The Council shall not take any water from the river De Lank by means of the intake (Work No. 1) by this Act authorised except when water is flowing in the river within a distance of 500 yards below the said intake at a rate of not less than one million two hundred and fifty thousand gallons in twenty-four hours nor shall the Council take water from the said river so as to reduce the flow between the said intake and the measuring gauge meter or orifice hereinafter mentioned to a rate less than two hundred thousand gallons in twenty-four hours. Restrictions on taking water.

(2) The Council shall not in any one day of twenty-four hours upon which water is abstracted take from the said river a greater total quantity of water than one million two hundred and fifty thousand gallons.

(3) For the purpose of measuring the quantity of water taken by the Council from time to time under the provisions of this Act and for the purpose of measuring the quantity of water which by this section the Council are required to permit to pass down the said river the Council shall before taking diverting or appropriating any such water erect and maintain within a distance of 500 yards below the said intake proper and sufficient automatically recording measuring gauges meters or orifices over or through which respectively the water so taken diverted or appropriated and the water so flowing shall pass.

(4) The said gauges and meters and the records obtained by means thereof shall be open to the examination of all persons interested in the flow of the said river

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PART II.
—cont.

(including the Camel Fishery Board) or their duly accredited representatives and such persons or representatives as aforesaid may take copies of the said records if they so desire.

(5) The design of the said gauges or meters shall be such as may be agreed between the Minister of Agriculture and Fisheries and the Council or as failing such agreement shall be determined by arbitration.

(6) If after commencing to take water from the said river the Council shall be guilty of any breach of any of the provisions of this section they shall for every day on which such breach occurs forfeit and pay to each of the persons affected by such breach (including the Camel Fishery Board) who shall sue for and recover the same the sum of five pounds and shall in addition make compensation for any loss or injury sustained by any such person.

13 & 14

Geo. 5. c. 16.

(7) The provisions of this Act shall not relieve the Council of any obligation or liability under section 19 of the Salmon and Freshwater Fisheries Act 1923 to provide attach and maintain a fish pass or fish passes or similar apparatus in connection with any works by this Act authorised.

Council may
provide
gauges.

10.—(1) The Council may provide place and maintain at any point or points in the river De Lank and above or below the intake (Work No. 1) by this Act authorised such gauges and other apparatus for measuring the flow of the river as they may consider necessary.

(2) The said gauges shall be erected and maintained to the approval of the Minister of Agriculture and Fisheries and in such manner as to interfere as little as reasonably possible with the natural flow of the said river and with the passage of fish up and down the said river.

Abatement
of work
abandoned
or decayed.

11.—(1) Where any work constructed by the Council under the powers of this Act and situate wholly or partially on under or over the shore or bed of the sea or of any creek bay arm of the sea or navigable river communicating therewith below high-water mark of ordinary spring tides is abandoned or suffered to fall into decay the Board of Trade may by notice in writing either require the Council at their own expense to repair and

restore such part of such work as is situate below high-water mark of ordinary spring tides or any portion thereof or require them to abate or remove the same and restore the site thereof to its former condition to such an extent and within such limits as the Board of Trade may think proper.

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PART II.
—cont.

(2) Where any part of any such work which has been abandoned or suffered to fall into decay is situate above the high-water mark of ordinary spring tides and is in such condition as to interfere or to cause reasonable apprehension that the same may interfere with the right of navigation or other public rights over the foreshore the Board of Trade may include any such part of such work or any portion thereof in any notice under this section.

(3) If during the period of thirty days from the date when the notice is served upon the Council they have failed to comply with such notice the Board of Trade may execute the works required to be done by the notice at the expense of the Council and the amount of such expense shall be a debt due from the Council to the Crown and shall be recoverable either as a debt due to the Crown or summarily as a civil debt.

12. If at any time the Board of Trade deems it expedient for the purposes of this Act to order a survey and examination of any work constructed by the Council under the powers of this Act which shall be on under or over tidal waters or tidal lands below high-water mark of ordinary spring tides or of the site upon which it is proposed to construct any such work the Council shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Council to the Crown and shall be recoverable either as a debt to the Crown or by the Board of Trade summarily as a civil debt.

Survey of
works by
Board of
Trade.

13.—(1) Subject to the provisions of this Act any work authorised by this Act shall only be constructed so far as the same shall be on under or over tidal waters or tidal lands below high-water mark of ordinary spring tides in accordance with plans and sections approved by the Board of Trade under the hand of one of the secretaries under secretaries or assistant secretaries of the Board of Trade and subject to such restrictions and

Works
below high-
water mark
to be
subject to
approval of
Board of
Trade.

A.D. 1937. regulations as the said Board may prescribe before such work is begun.

PART II.

—cont.

(2) Any alteration or extension of any such work shall be subject to the like approval.

(3) If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost of the Council and the amount of such cost shall be a debt due from the Council to the Crown and shall be recoverable either as a debt due to the Crown or by the Board of Trade summarily as a civil debt.

For
protection
of Cornwall
County
Council.

14. For the protection of the county council the following provisions shall unless otherwise agreed in writing between the county council and the Council have effect with respect to the execution of any works authorised by this Act or the exercise of any of the powers of this Act affecting any highway or bridge (that is to say) :—

(1) The provisions of this section are in addition to and not in substitution for the provisions of the Waterworks Clauses Act 1847 (in this section referred to as “the Act of 1847”) with respect to the breaking up of streets for the purpose of laying pipes except so far as such last mentioned provisions are expressly varied by the provisions of this section :

(2) In this section—

“highway” means a county road vested in or repairable by the county council ;

“bridge” means a bridge vested in or repairable by the county council ;

“apparatus” includes any line of pipes discharge pipe post wire conductor or other works of the Council ;

“the surveyor” means the surveyor to the county council :

(3) All apparatus to be laid in or along any highway or in or upon or across any bridge shall be laid in such position in or at the side thereof and at

such depth as the county council in writing under the hand of the surveyor may reasonably approve :

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PART II.

—cont.

- (4) The notice required by section 30 of the Act of 1847 to be given to the county council shall (except for laying connecting or repairing communication pipes as to which three days' notice shall be given and except in cases of emergency) be not less than seven days in the case of a highway and not less than fourteen days in the case of a bridge instead of three days :
- (5) The plan required by section 31 of the Act of 1847 shall be accompanied by a section and description of the proposed works and shall (except as aforesaid) be delivered to the surveyor by the Council not less than fourteen days before the Council commence to interfere with any bridge and not less than seven days before the Council commence to open or break up any highway for the purpose of executing the works and any difference as to any such plan description or section or as to the temporary or other works referred to in the said section 31 shall be determined by arbitration instead of in the manner prescribed by the said section 31 If the surveyor shall not within fourteen days in the case of a bridge and seven days in the case of a highway after the plan section and description shall have been delivered to him express his approval or disapproval thereof or signify his requirements in relation thereto he shall be deemed to have approved thereof :
- (6) The surplus paving metalling or materials arising from the laying renewal or repair of the apparatus shall not (so far as may be reasonably practicable) be placed on the metalled portion of any highway or in or upon any bridge without the written consent of the surveyor and subject to such conditions (other than a payment of money) and directions as he may reasonably require or give :
- (7) If the Council in the execution of any works in or affecting any highway or bridge shall cause

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PART II.

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any damage injury or disturbance thereto and shall neglect or refuse to make good all such damage injury or disturbance to the reasonable satisfaction of the county council then it shall be lawful for the county council after reasonable notice to the Council of the alleged neglect or refusal and of the works they propose to execute to do all works necessary for making good all such damage injury or disturbance and the Council shall repay to the county council all costs charges and expenses which the county council shall reasonably and properly incur in carrying out such works including all reasonable expense of superintendence :

- (8) Nothing in this Act shall authorise the Council to interfere with the structural part of any bridge without the consent in writing of the surveyor. Such consent shall not be unreasonably withheld and may be given upon such conditions as the surveyor may reasonably determine :
- (9) Nothing in this Act contained shall prejudice or affect the right of the county council at any time or times to divert widen alter the levels of or otherwise alter and improve any highway and to remove alter rebuild widen or repair any bridge in under over or attached to which any apparatus is carried in the same manner as the county council might have diverted improved or removed altered rebuilt widened or repaired any such highway or bridge if this Act had not been passed and such apparatus had not been constructed or laid in under over or attached to such highway or bridge respectively and the county council shall not make any compensation or payment other than the repayment referred to in proviso (a) (i) to this paragraph to the Council for any expense or loss to which the Council may be put by reason or in consequence of any such diversion improvement removal alteration rebuilding widening or reparation. In the event of any such highway or bridge in under over or attached to which any such apparatus is laid being diverted improved removed altered rebuilt widened or repaired as aforesaid in such

manner as to require the removal or alteration of any such apparatus the Council shall as and when requested by the surveyor by not less than fourteen days' notice in writing remove or alter the position of the said apparatus and the works by which the same is carried in under over or attached to any such highway or bridge as aforesaid and replace the same to the reasonable satisfaction of the surveyor :

Provided that—

(a) the cost of carrying out any works necessary for the purposes of complying with any requirement of the surveyor pursuant to the provisions of this paragraph—

(i) in the case of the diversion widening alteration of the levels of or other alteration or improvement of any highway shall be repaid to the Council by the county council;

(ii) in the case of the removal alteration rebuilding widening or repair of any bridge shall be borne and paid by the Council; and

(b) during any such diversion improvement removal alteration rebuilding widening or reparation of such highway or bridge as aforesaid the county council shall afford to the Council all reasonable facilities for temporarily carrying such apparatus along the highway or across any stream or river so as not to interrupt the continuous supply of water or to diminish the pressure of such supply through such apparatus and the Council may carry such apparatus accordingly :

(10) All works shall be so executed by the Council so far as reasonably practicable as not in any way to impede or interfere with the traffic on any highway or over any bridge :

(11) All costs charges amounts and expenses payable by the Council to the county council under the provisions of this section shall be recoverable as a debt due from the Council to the county council :

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PART II.
—cont.

A.D. 1937.

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PART II.
—cont.

- (12) The county council shall not except in the case of their negligence be liable for or in respect of any damage or injury done to any apparatus laid fixed and executed after the passing of this Act in under or along the metalled portion of any highway or of the roadway over a bridge or the approaches thereto arising from the use by the county council of any steam or other roller for the repair of any such highway or of any traction engine not exceeding fifteen tons in weight :
- (13) The Council shall not place any stand-pipe or stand-pipes in any county road or upon any county bridge except in such position as the county council may approve and such approval may be given subject to such reasonable terms and conditions as the county council may think fit to impose :
- (14) If any difference at any time arises between the county council and the Council touching this section or anything to be done or not to be done thereunder such difference shall be settled by arbitration.

For
protection
of Southern
and Great
Western
Railway
Companies.

15. For the protection of the Southern Railway Company and the Great Western Railway Company (each of whom is in this section referred to as "the railway company") the following provisions shall notwithstanding anything contained in this Act or shown on the deposited plans and sections and unless otherwise agreed in writing between the Council and the railway company apply and have effect (that is to say) :—

- (1) The Council shall not under the powers of this Act purchase or acquire any land or property of the railway company but the Council may acquire and the railway company shall if so required by the Council grant to the Council an easement or right of making and maintaining Work No. 2 by this Act authorised across and under the Bodmin and Wadebridge railway and alongside of the North Cornwall railway of the railway company and the provisions of the Lands Clauses Acts shall apply to and in respect

of the acquisition of such easement or right as fully as if the same were lands within the meaning of those Acts:

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PART II.
—cont.

(2) (a) The said Work No. 2 shall be carried alongside of a bridge carrying the said North Cornwall railway over the river Camel in a position and by means of attachments of a design to be reasonably approved by the railway company;

(b) The said attachments shall be affixed and maintained by the railway company and the reasonable cost thereof and any expenses reasonably incurred by the railway company in connection therewith shall be repaid by the Council to the railway company;

(c) The Council shall provide and maintain efficient cut-off valves on the service side of the said Work No. 2 where it crosses under the said Bodmin and Wadebridge railway and where it passes alongside of the said North Cornwall railway:

(3) In this section "authorised works" means—

(a) so much of the said Work No. 2 as is referred to in paragraphs (1) and (2) of this section;

(b) any other works executed by the Council under the powers of this Act in so far as the same will be executed upon across over or under or will in any way affect the railways works roads bridges or property of the railway company;

and all works of maintenance repair renewal and removal thereof:

(4) The authorised works shall be executed and maintained under the superintendence (if given) and to the reasonable satisfaction of the chief engineer of the railway company (in this section referred to as "the engineer") and in accordance with plans sections and specifications to be previously submitted to and reasonably approved in writing by him. Provided that if the engineer shall not signify his approval or

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PART II.
—cont.

disapproval of such plans sections and specifications within twenty-eight days after they shall have been submitted to him he shall be deemed to have approved thereof:

- (5) If the railway company give notice in writing to the Council within twenty-one days after the submission of the plans sections and specifications referred to in paragraph (4) of this section that they desire so to do they may themselves execute and maintain so much of the authorised works (other than the actual laying down and maintenance of the pipes) as will be situate on the property of the railway company and the reasonable cost thereof and any reasonable expense incurred by the railway company in connection therewith shall be repaid by the Council to the railway company:
- (6) The Council shall give twenty-one days' notice in writing to the railway company before commencing any of the authorised works and such notice shall state the proposed date and time of such commencement and the authorised works shall be carried out only at such times as the engineer shall reasonably require:
- (7) The authorised works shall be executed by and at the expense of the Council who shall with all reasonable dispatch make good and restore to the reasonable satisfaction of the engineer any property or works of the railway company or any roads or footpaths liable to be maintained by them affected by the authorised works and shall to the like satisfaction maintain such roads or footpaths (so far as the same may have been interfered with by the execution of the authorised works) for three months after such restoration and for such further time (if any) not being more than twelve months in the whole as such roads or footpaths shall continue to subside:
- (8) The authorised works shall be executed and maintained so as to cause as little injury or damage as may be to the railways and property of the railway company and so as not to cause any interruption to the passage or conduct of

traffic thereover and if any such injury damage or interruption arises from the acts or operations of the Council or from the bursting leakage or failure of the authorised works all such injury or damage shall forthwith be made good by the Council or if the railway company so elect by the railway company at the expense of the Council and the Council shall be responsible for and shall indemnify and save harmless the railway company from all claims arising out of or in connection with any such injury damage or interruption and shall make compensation to the railway company in respect thereof:

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PART II.
—cont.

- (9) If by reason of the execution of the authorised works it shall become necessary to alter or strengthen any embankment or other work of the railway company such alteration or strengthening shall be carried out by the railway company after giving (except in case of emergency) not less than seven days' notice of their intention so to do to the Council at such times and in such manner as they may think expedient or necessary and the reasonable cost thereof and any reasonable expense incurred by the railway company in connection therewith shall be repaid by the Council to the railway company:
- (10) The Council shall bear and on demand pay to the railway company the reasonable expense incurred by the railway company of and in connection with the employment by the railway company during the carrying out of the same of such inspectors watchmen or signalmen to be appointed by the railway company as may be reasonably necessary for watching and protecting the railways and property of the railway company and the conduct of the traffic thereon with reference to and during the carrying out of the authorised works and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Council or their contractors or any person in their respective employ:

A.D. 1937.

PART II.
—cont.

- (11) Any additional expense which the railway company may reasonably incur in effecting any repair renewal widening alteration or extension of their railways or other works in pursuance of any powers existing at the passing of this Act by reason of the existence of the authorised works across over or under the railways or works of the railway company shall be borne by the Council:
- (12) Any expenses reasonably incurred by the railway company under the provisions of paragraphs (2) (5) (8) (9) and (10) of this section shall be deemed to include the reasonable cost of insurance against the payment of compensation to any workman or his legal representatives or dependants in respect of the injury or death of such workman whilst employed by the railway company in and about the works respectively mentioned in the said paragraphs or (if the railway company do not insure) a reasonable sum to cover such risks:
- (13) Any difference which may arise between the Council and the railway company under paragraphs (2) to (12) of this section shall be referred to and determined by arbitration.

For
protection
of Sir R. W.
Onslow
Thos. W.
Ward Ltd.
and others.

16. For the protection of—

- (a) Sir Richard Wilmot Onslow baronet or other the owner or owners for the time being of—

(i) the lands in the parishes of Saint Breward and Blisland belonging to him at the date of the passing of this Act with the quarries rocks beds and pits of granite and stone lying and being in upon or under the same; and

(ii) the quarries rocks beds and pits of granite and stone so belonging and lying and being in upon or under other lands in the said parishes;

or of any part of the first-mentioned lands or of any of the said quarries rocks beds and

pits of granite and stone (all of whom are in this section collectively referred to as "the owner"); and

A.D. 1937.

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PART II.

—cont.

- (b) Thos. W. Ward Limited as lessees for terms of years expiring on the sixth day of September one thousand nine hundred and fifty-eight of certain of the said quarries rocks beds and pits of granite and stone with the right to use work quarry dig and extend the said quarries rocks beds and pits of granite and stone by virtue of an indenture of conveyance and assignment dated the thirteenth day of November one thousand nine hundred and twenty-five and made between the Cornish (De Lank) Granite Quarries Limited of the first part the Honourable Edward Augustine Harney and Frank Herbert Briggs of the second part the De Lank Elvan Company Limited of the third part the said Frank Herbert Briggs of the fourth part and the said Thos. W. Ward Limited of the fifth part or their assignees as such lessees (which lessees and assignees are in this section collectively referred to as "the lessees");

the following provisions shall unless otherwise agreed in writing between the Council on the one hand and the owner or the lessees (as the case may require) on the other hand have effect (that is to say):—

(1) Notwithstanding anything contained in this Act or shown on the deposited plans the Council shall not acquire compulsorily any lands of the owner or the estate or interest of the lessees in any such lands but may if they think fit exercise with reference to any such lands delineated on the deposited plans and described in the deposited book of reference the powers conferred by the section of this Act of which the marginal note is "Council may acquire easements only":

(2) Before commencing to execute any works under the powers of this Act in

A.D. 1937.

PART II.

—cont.

through over or under any lands of the owner the Council shall submit to the owner and (so far as such works affect any lands in respect of which the lessees are entitled to any such right as aforesaid) the lessees for their reasonable approval plans sections and particulars of such works and such works shall not be commenced until such plans sections and particulars shall have been approved by the owner and the lessees or settled by arbitration. Provided that unless within the period of one month after the submission to them respectively of such plans sections and particulars the owner or the lessees shall have intimated in writing to the Council their objection thereto or made any requirement with reference thereto the owner or the lessees (as the case may be) shall be deemed to have approved thereof and that if within the said period the owner or the lessees shall have intimated any such objection or made any such requirement a difference shall be deemed to have arisen which shall be settled by arbitration as hereinafter provided:

(3) (a) The execution of the works by this Act authorised shall not prevent or interfere in any way with the use working quarrying digging or extending of the said quarries rocks beds and pits of granite and stone by the owner or the lessees and neither the owner nor the lessees shall in the absence of negligence on the part of themselves their contractors agents workmen or servants incur any liability or obligation (whether to the Council or to any other party) in respect of any damage or injury to the said works which may be caused by or result directly or indirectly from such use working quarrying digging or extending;

(b) If at any time it shall be reasonably necessary in order to obviate any such prevention interference damage or injury as aforesaid that any works executed by

the Council should be diverted the Council may and (if so required by the owner or the lessees) shall at their own expense divert such works on to other lands of the owner in accordance with plans sections and particulars to be previously approved by the owner and the lessees and under their supervision and to their reasonable satisfaction;

A.D. 1937.

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PART II.
—cont.

(c) The owner and the lessees shall grant to the Council free of charge such easements or facilities as shall be reasonably necessary for the purposes of any such diversion :

(4) Not less than six months before commencing to take the waters of the river De Lank under the powers of this Act the Council shall give to the owner and to the lessees notice in writing of their intention so to commence :

(5) By way of compensation for loss damage or injury resulting from the abstraction by the Council of water from the river De Lank or its tributaries under the powers of this Act the Council shall pay to the lessees during the remainder of the term of their interest as such lessees as aforesaid and (subject to the provisions of paragraph (8) of this section) during the term of any renewal or extension which may from time to time be granted of the leases under which they occupy and are entitled to use work quarry dig and extend the said quarries rocks beds and pits of granite and stone the following sums and at the following times (that is to say) :—

(a) The sum of one hundred and fifty pounds on the expiration of—

(i) the period of eighteen months from the date of the passing of this Act; or

A.D. 1937.

PART II.

—cont.

(ii) the period of twelve months from the date on which the Council commence to execute the works by this Act authorised;

whichever of those periods shall last expire but so that the said sum shall in any event be so paid not later than on the expiration of the period of three years from the date of the passing of this Act; and

(b) The sum of two hundred pounds on the expiration of the period of twelve months from the date on which the said sum of one hundred and fifty pounds becomes payable as aforesaid; and

(c) The sum of two hundred and fifty pounds on the expiration of the period of twelve months from the date on which the said sum of two hundred pounds becomes payable as aforesaid and on the expiration of each subsequent period of twelve months:

(6) If at any time before the sum of two hundred pounds becomes payable by the Council to the lessees pursuant to paragraph (5) of this section the Council enter into an agreement with the Newquay and District Water Company or the rural district council of the rural district of Saint Austell for the supply of water in bulk to such company or council the said paragraph (5) shall as from the date of such agreement be read and have effect as if the sum of two hundred and fifty pounds had been referred to in subparagraphs (a) and (b) or in subparagraph (b) (as the case may be) of that paragraph instead of the sum of one hundred and fifty pounds or two hundred pounds:

(7) The Council shall pay to the owner the sum of two hundred and fifty pounds on the expiration of the period of twelve

[1 EDW. 8. &
1 GEO. 6.]

*Wadebridge Rural
District Council Act, 1937.*

[Ch. xcii.]

months from the date on which that sum shall last have become payable to the lessees pursuant to paragraphs (5) and (6) of this section and on the expiration of each subsequent period of twelve months :

A.D. 1937.

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PART II.
—cont.

(8) (a) If at any time during the term of any renewal or extension which may from time to time be granted of the said leases or after the expiration of the said leases or any renewal or extension thereof quarrying operations on the said lands or any part thereof are suspended or reduced to such an extent that the use of mechanical power for such operations to replace the water power lost as a result of the abstraction by the Council of water from the river De Lank or its tributaries is not reasonably necessary then as from the date of such suspension or reduction and so long as the same shall continue the sum of fifty pounds shall be substituted for the sum of two hundred and fifty pounds referred to in this section ;

(b) If such suspension or reduction continues for a continuous period of ten years the Council shall subject as hereinafter provided cease to be under any obligation to make any payment under this section in respect of any period subsequent to that period ;

(c) If at any time (whether before or after the expiration of the said period of ten years) such quarrying operations as aforesaid shall be resumed to such an extent as to render reasonably necessary the use of mechanical power for those operations to replace the water power lost as aforesaid then as from the date of such resumption and so long as quarrying operations shall continue to such an extent as aforesaid the provisions of this paragraph shall have effect as if subparagraphs (a) and (b) of this paragraph had been omitted therefrom :

A.D. 1937.

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PART II.
—cont.

(9) If any difference shall arise between the Council on the one hand and the owner or the lessees on the other hand under this section such difference shall be referred to and determined by an engineer to be appointed (failing agreement) on the application of either of the parties in difference (after notice in writing to the other of them) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to any such reference and determination :

(10) The provisions of paragraphs (5) to (9) of this section shall be in full satisfaction and discharge of all rights or claims of the owner and the lessees to or for compensation for any loss or injury resulting from the abstraction of water by the Council from the river De Lank or its tributaries under the powers of this Act.

For further
protection
of Sir
Richard
Onslow.

17. For the further protection of Sir Richard Wilmot Onslow baronet or other the owner for the time being of the china clay beds referred to in this section (in this section referred to as "the owner") the following provisions shall unless otherwise agreed in writing between the owner and the Council apply and have effect (that is to say) :—

- (1) If at any time and from time to time for the purpose of working the beds of china clay belonging to him at Butters Tor Marsh and Rough Tor Marsh or any of them the owner is desirous of abstracting water from the river De Lank at a rate not exceeding two hundred and eighty-eight thousand gallons in every twenty-four hours at any point above the intake and weir Work No. 1 by this Act authorised the Council shall not withhold their consent to such abstraction :

Provided that such consent may be given subject to such conditions as may be reasonably necessary for the purpose of safeguarding the supplies of water required by the Council :

(2) The owner shall take such steps as may be reasonably necessary for the purpose of ensuring that no cloudy water shall be discharged or permitted to flow into the river De Lank above the said intake and weir by reason or in consequence of the working of the said beds of china clay: A.D. 1937.
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PART II.
—cont.

(3) Any question arising under this section shall failing agreement be determined by arbitration.

18.—(1) The Council may make byelaws for preventing the pollution fouling or contamination of the water which they are authorised to take for the purposes of any of their waterworks and may by such byelaws prescribe the construction maintenance and use of proper drains sewers and works and make provision for the prevention of any act or thing tending to pollution of the water. Byelaws for preventing pollution of water.

(2) The byelaws made under this section shall be in force within the area defined in the byelaws being the whole or part of the areas through which the said waters flow.

(3) Any landowner who may be affected by any such byelaws shall be entitled to be furnished with a copy thereof and to oppose the confirmation thereof.

(4) The Council shall pay compensation to the owners of and other persons interested in any lands in respect of which byelaws shall be made under the provisions of this section whose legal rights shall be injuriously affected by the restrictions imposed by such byelaws or who are required by such byelaws to construct any works or to do any act or thing which could not lawfully be required by the local authority of the district in which such lands are situate and such compensation shall be settled in default of agreement by arbitration and for the purposes of this subsection the expression "legal rights" shall include a user of land in respect of which the local authority might have taken proceedings under the Act of 1936 or under their byelaws but have decided not to do so having regard to the character or situation of the land.

(5) If the authority responsible for the maintenance of any highway in any area in which byelaws made under

A.D. 1937.

PART II.
—cont.

the provisions of this section shall be in force shall be required by the Council to construct filtration or other works for dealing with surface water from the highway the reasonable cost of the construction of such works shall unless otherwise agreed with the said authority be borne by the Council.

Application
of Water-
works
Clauses Act
1847.

19. The provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets shall apply with the necessary modifications to the construction laying down erection and maintenance in or across any streets or roads of the conduits or lines of pipes authorised by this Act and of any discharge pipes telephone or telegraph posts wires conductors or apparatus which the Council may erect or lay down for the purposes of the water undertaking:

32 & 33 Vict.
c. 73.

Provided that any telephone or telegraph posts wires conductors or apparatus laid down or erected under the provisions of this section shall not be used in contravention of the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869 and shall be so constructed maintained and used as to prevent interference with any telegraphic line belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line:

Provided also that the Council shall not exercise the powers of this section in respect of any street belonging to or repairable by a railway company without the previous consent of that railway company but such consent shall not be unreasonably withheld and any question as to whether or not such consent is unreasonably withheld shall be determined by arbitration.

Discharge of
water into
streams.

20.—(1) For the purpose of executing constructing enlarging extending repairing cleansing emptying or examining any of the waterworks of the Council the Council may cause the water in any such work to be discharged into any available stream ditch or water-course Provided that any water so discharged shall so far as may be reasonably practicable be free from mud solid or offensive matter and other matter injurious to fish or spawn or spawning beds or food of fish.

(2) In the exercise of the powers conferred by this section the Council shall do as little damage as may be

and shall pay compensation to all persons for all damage sustained by them by reason or in consequence of the exercise of such powers the amount of compensation to be settled in case of difference by arbitration.

A.D. 1937.
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PART II.
—cont.

(3) The powers conferred by this section shall not be exercised so as to damage or injuriously affect any county road or bridge or the traffic thereon or the railways or works of a railway company.

21.—(1) The Council during and for the purpose of the execution of the works authorised by this Act may temporarily stop up and divert and interfere with any street and may for any reasonable time divert the traffic therefrom and prevent all persons other than those bona fide going to or from any house in the street from passing along and using the same.

Temporary
stoppage of
streets.

(2) The Council shall provide reasonable access for foot-passengers bona fide going to or from any such house.

(3) The Council shall not exercise the powers of this section so as to prevent reasonable access for foot-passengers and vehicular traffic bona fide going to or from any railway station or depot of any railway company.

(4) The powers of this section shall not be exercised in reference to a county road or county bridge without the consent of the county council but such consent shall not be unreasonably withheld.

22. Subject to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes the Council may for the purpose of measuring the quantity of water supplied or of preventing and detecting waste affix and maintain meters and similar apparatus on the service pipes and mains of the Council and stopcocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose break up and interfere temporarily with public and private streets sewers gas air or water pipes electric lines wires and apparatus:

Meters in
streets to
measure
water or de-
tect waste.

A.D. 1937.

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PART II.
—cont.

Provided that the Council shall not interfere with any telegraphic line belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878 :

Provided also that the Council shall not exercise the powers of this section in respect of any street belonging to or repairable by a railway company without the previous consent of that railway company but such consent shall not be unreasonably withheld and any question as to whether or not such consent is unreasonably withheld shall be determined by arbitration.

PART III.

LANDS.

Power to
acquire
lands.

23. Subject to the provisions of this Act the Council may enter upon take appropriate and use all or any of the lands delineated on the deposited plans and described in the deposited book of reference which they may require for the purposes of this Act.

Correction
of errors
in deposited
plans and
book of
reference.

24. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Council after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices having jurisdiction in the place in which the lands are situate for the correction thereof and if it appears to the justices hearing the application that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate or a copy thereof shall be deposited with the clerk of the county council and a duplicate thereof shall be deposited with the clerk of the county district in which the lands are situate and if the lands are situate in a rural parish having a parish council also with the clerk of that council and such certificate or copy and duplicate respectively shall be kept by such clerks respectively with the other documents to which the same relate and thereupon the

deposited plans or book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Council to take the lands and execute the works in accordance with such certificate.

A.D. 1937.
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PART III.
—cont.

25. The powers of the Council for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the first day of October one thousand nine hundred and thirty-seven.

Period for compulsory purchase of lands.

26.—(1) The Council may in lieu of acquiring any lands for the purposes of the works authorised by this Act acquire such easements only in such lands as they may require for such purposes (including the making enlarging renewing maintaining repairing inspecting cleansing managing using working and obtaining access to such works) and may give notice to treat in respect of such easements describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such easements as fully as if the same were lands within the meaning of those Acts except that no such easement shall be deemed part of a house or other building or manufactory within the meaning of section 92 of the Lands Clauses Consolidation Act 1845.

Council may acquire easements only.

(2) As regards any lands in respect of which the Council have acquired easements only under the provisions of this section the Council shall not be required or entitled to fence off or sever such lands from the adjoining lands but unless otherwise agreed the owners or occupiers for the time being shall subject to such easements have the same rights to use and cultivate the said lands at all times as if this Act had not been passed.

27. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Council any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such

Persons under disability may grant easements &c.

A.D. 1937.

PART III.

—cont.

Power to
Council to
enter upon
property for
survey and
valuation.

grants and to such easements rights and privileges as aforesaid respectively.

28. The Council and their surveyor officers and workmen and any person duly authorised in writing under the hand of the clerk may from time to time at all reasonable times in the day upon giving in writing for the first time twenty-four hours' and afterwards from time to time twelve hours' previous notice enter upon and into the lands houses and buildings authorised by this Act to be taken and used or any of them for the purpose of surveying and valuing the said lands houses and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands houses and buildings.

Extinction
of private
rights of
way.

29. All private rights of way over any lands which the Council are authorised by this Act to acquire compulsorily shall as from the date of the acquisition of such lands by the Council be extinguished unless the Council shall by resolution otherwise determine and give notice in writing of their resolution to the owner of any right of way referred to therein :

Provided that the Council shall make full compensation to all persons interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Compensa-
tion in case
of recently
acquired
interest.

30. For the purposes of determining any question of disputed compensation payable in respect of lands taken under the powers of this Act the tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the land created after the first day of November nineteen hundred and thirty-six if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Power to
purchase
additional
lands by
agreement.

31. The Council in addition to any other lands acquired or held by them in pursuance of this Act may by agreement purchase take on lease acquire and hold

for the purposes of the water undertaking any lands not exceeding (except with the consent of the Minister) ten acres in extent or any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) over or in respect of lands which the Council deem necessary for those purposes:

A.D. 1937.

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PART III.
—cont.

Provided that the Council shall not create or permit the creation or continuance of any nuisance on any such lands nor (without the approval of the Minister) erect any buildings thereon except offices and dwellings for persons in their employment and such buildings and works as may be incident to or connected with the water undertaking but the restrictions of this section shall not apply in respect of lands leased or sold by the Council.

32.—(1) For the purpose of protecting against pollution nuisance encroachment or injury any of the waters which the Council are empowered to take the Council may by agreement purchase take on lease or otherwise acquire any lands easements or rights and may hold such lands and any other lands which the Council may have acquired for the purposes of the water undertaking so long as they shall deem it necessary or expedient for those purposes:

Power to
hold lands
and exercise
powers for
protection of
waters.

Provided that the Council shall not create or permit the creation or continuance of any nuisance on any lands acquired under this section nor (without the approval of the Minister) erect any buildings thereon except offices and dwellings for persons in their employment and such buildings and works as may be incident to or connected with the water undertaking but the restrictions of this section as to the erection of buildings shall not apply in respect of lands leased or sold by the Council.

(2) (a) The Council may in and upon the lands referred to in subsection (1) of this section construct and lay down drains sewers watercourses catchpits and other works and conveniences necessary or proper for the purpose of intercepting or taking all foul waters arising or flowing upon such lands or necessary or proper for preventing the water which the Council are empowered to take from being polluted and the Council

A.D. 1937.

PART III.

—cont.

may for the purposes aforesaid with the consent of the highway authority which consent shall not be unreasonably withheld carry any such drain sewer or watercourse under across or along any street or road subject and according to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes.

(b) Any question as to whether any such consent as aforesaid is unreasonably withheld shall be determined by arbitration.

(c) The Council shall not exercise the powers of this subsection in respect of any street or road belonging to or repairable by a railway company without the previous consent of that company but such consent shall not be unreasonably withheld and any question as to whether or not such consent is unreasonably withheld shall be determined by arbitration.

(3) The Council may make and carry into effect agreements with the owners lessees or occupiers of any lands with reference to the execution by the Council or by such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters which the Council are for the time being authorised to take.

Reservation
of water
rights &c.
on sale.

33. The Council on selling any lands may reserve to themselves all or any part of the water rights or other rights or easements belonging thereto and may make the sale subject to such reservation accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to the exercise of noxious trades or discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit.

Power to
retain sell
&c. lands.

34.—(1) Notwithstanding anything in the Lands Clauses Acts to the contrary the Council may retain and hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and on such terms and conditions as they may think fit and either in consideration of the execution of works or of the payment of a gross

[1 EDW. 8. & Wadebridge Rural [Ch. xcii.]
1 GEO. 6.] District Council Act, 1937.

sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act or any general or local Act for the time being in force in the district (other than the Housing Act 1936 or any Act repealed by that Act) and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interest therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange:

Provided that the Council shall not without the consent of the Minister sell lease exchange or otherwise dispose of any such lands or any interests therein at a price or rent or for a consideration of a value less than the current market value of such lands or interests but a purchaser or lessee shall not be concerned to inquire whether the consent of the Minister is necessary or has been obtained:

Provided also that nothing in this section shall be taken to dispense with the consent of any Government department to any sale lease appropriation or other disposition of any lands of the Council other than lands acquired under any local Act applying to the Council in any case in which such consent would have been required if this Act had not been passed.

(2) Nothing in this section shall release the Council or any person purchasing or acquiring any lands from them under this section from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which any such lands were or may hereafter be conveyed or leased to or otherwise acquired by the Council or any person from or through whom the Council may have derived or may hereafter derive title to the same but all such rents covenants restrictions reservations terms and conditions shall remain and be of as full force and effect and may be recovered exercised enjoyed and enforced in like manner and to the same extent as if this Act had not been passed.

35. The Council may so far as they consider necessary apply subject to the approval of the Minister any capital moneys received by them on the re-sale or

A.D. 1937.

PART III.

—cont.

26 Geo. 5. &

1 Edw. 8.

c. 51.

Proceeds of
sale of sur-
plus lands.

A.D. 1937.

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PART III.
—cont.

exchange of or by leasing any lands acquired under the authority of this Act in the purchase of other lands but as to capital moneys so received and not so applied the Council shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this or any other Act and such application shall be in addition to and not in substitution for any other mode of extinguishment of such loan except to such extent and upon such terms as may be approved by the Minister.

Dwelling-
houses for
employees
and other
buildings.

36. The Council may purchase or take on lease and maintain houses and buildings for persons in their employment in connection with the water undertaking and the Council may also erect maintain and let any such buildings upon any land for the time being belonging or leased to the Council for those purposes.

PART IV.

SUPPLY OF WATER.

Limits of
supply.

37. The limits of this Act for the supply of water (in this Act referred to as "the limits of supply") shall be the parishes of Saint Tudy Saint Mabyn Egloshayle Lanivet Saint Breock Saint Issey Saint Ervan Saint Eval and Saint Merryn in the district and the parish of Bodmin Rural in the district except so much of the said parish as is situate on the east side of the river Camel above Dunmere Bridge.

Alteration
of Bodmin
Company's
limits.

29 & 30 Vict.
c. viii.
56 & 57 Vict.
c. clii.

38.—(1) As on and from the date of the passing of this Act the parishes of Saint Mabyn and Lanivet and so much of the parish of Bodmin Rural as is included within the limits of supply shall cease to form part of the limits for the supply of water by the Bodmin Waterworks Company (in this section referred to as "the water company") authorised by the Bodmin Water Acts 1866 and 1893.

(2) Notwithstanding the provisions of this section the water company may continue to supply water to any premises in the said part of the said parish of Bodmin Rural to which they are giving a supply at the date of the passing of this Act and with the consent

[1 EDW. 8. & Wadebridge Rural [Ch. xcii.]
1 GEO. 6.] District Council Act, 1937.

of the Council may afford supplies to other premises in the said part of the said parish and so long as the water company continue to give a supply to any such premises the Council shall not be entitled to supply water thereto. A.D. 1937.

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PART IV.
—cont

(3) The water company shall for the purposes of continuing to give such supplies have the like powers with respect to the breaking up of streets as if the said part of the said parish had not ceased to form part of the limits for the supply of water by the water company.

(4) The water company and the Council may by agreement provide upon such terms as they may determine for the transfer to the Council of the right to supply all or any of the premises referred to in subsection (2) of this section and upon the execution of any such agreement the right of the water company to supply water to the premises the subject matter of the agreement shall cease.

39. The agreement dated the twenty-seventh day of April one thousand nine hundred and thirty-seven and made between the Council of the one part and the Bodmin Waterworks Company of the other part as set forth in the schedule to this Act is hereby confirmed and made binding upon the parties thereto respectively and effect may and shall be given thereto accordingly subject to such modifications if any as may be agreed between the said parties in writing Provided that no such modification shall be of such a character as to affect the rights or interests of any persons other than the said parties or shall be inconsistent with the provisions of this Act. Confirmation of scheduled agreement.

40.—(1) If before the first day of October nineteen hundred and thirty-seven the Newquay and District Water Company (in this section referred to as "the company") shall give to the clerk notice in writing requiring the Council to afford to the company a supply of water in bulk the Council and the company shall enter into and fulfil an agreement for such purpose on such terms and conditions as may be agreed between the Council and the company or as failing agreement shall be settled by the Minister. As to supply to Newquay and District Water Company.

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PART IV.
—cont.

(2) Section 67 (Contracts for supplying water in bulk) of this Act shall not apply to a supply of water in bulk afforded by the Council to the company in pursuance of an agreement made under this section.

Power to lay
mains be-
yond limits
of supply.

41. The Council may for the purposes of laying pipes for supplying water within the limits of supply exercise as regards so much of the road leading from Wenfordbridge to Blisland as is situate in the parish of St. Breward in the rural district of Camelford and so much of the road leading from Dunmere bridge to Lanivet via Nanstallon as is situate in the borough of Bodmin the like powers with reference to the breaking up of streets for the purpose of laying pipes as if such street or road were within the limits of supply but nothing in this section shall authorise the Council to supply water beyond such limits.

Supply of
water.

42. Subject to the provisions of this Act the provisions of the Act of 1936 shall apply to the supply of water by the Council within the limits of supply.

Limit of
pressure.

43. The water supplied by the Council need not at any time be delivered at a pressure greater than that to be afforded by gravitation from the service reservoir or tank from which the supply is taken.

Amendment
of section 35
of Water-
works
Clauses Act
1847.

44. The provisions of section 35 of the Waterworks Clauses Act 1847 shall in their application to the Council be read and construed as if the one tenth part of the expense of providing and laying down pipes mentioned in that section were one eighth part of such expense.

Rates for
supply of
water for
domestic
purposes.

45.—(1) When the Council are in a position to supply water by means of the works by this Act authorised they shall at the request of the owner or occupier of any dwelling-house or part of a dwelling-house entitled under the provisions of the Act of 1936 to demand a supply of water for domestic purposes furnish to such owner or occupier a sufficient supply of water for domestic purposes at a rate per annum not exceeding twenty per centum upon the gross value of the premises so supplied :

Provided that the Council shall not be required to supply any premises with water at a less sum than twenty-five shillings per annum.

(2) The gross value of any such premises as aforesaid shall be ascertained by the valuation list in force at the commencement of the quarter for which the rate accrues or by any alterations in or additions to such list made during such period. Provided that in the case of a newly erected or a newly constructed dwelling-house or part of a dwelling-house which first comes into occupation after the commencement of any quarter for which a rate accrues and which is not at the time in the valuation list the gross value of such dwelling-house or part of a dwelling-house shall be estimated by the Council and in case of dispute as to the amount of the estimate the same shall be ascertained by a court of summary jurisdiction. Provided also that where the water rate is chargeable on the gross value of a part only of any hereditament entered in the valuation list such gross value shall be a fairly apportioned part of the gross value of the whole hereditament ascertained as aforesaid the apportionment in case of dispute to be ascertained by a court of summary jurisdiction.

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PART IV.
—cont.

(3) In addition to the foregoing charges the Council may charge in respect of every watercloset beyond the first (for which no additional charge shall be made) on any premises within the limits of supply a sum not exceeding ten shillings per annum and in respect of every fixed bath capable of containing not more than sixty gallons and in respect of every bath having an emptying aperture and capable of containing more than twenty gallons but not more than sixty gallons a sum not exceeding twenty shillings per annum and in respect of every bath capable of containing more than sixty gallons such sum as the Council may think fit.

(4) Any sums charged under subsection (3) of this section shall be recoverable at the like dates and in the same manner as other water rates leviable by the Council under this section can be recovered.

46.—(1) The Council may supply water for other than domestic purposes on such terms and conditions as the Council think fit and may supply water by meter either for domestic or other purposes and the moneys payable for the supply of water under this section shall be recoverable in the same manner as water rates.

Supply by
meter.

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PART IV.
—cont.

(2) Provided always that no persons shall be entitled to a supply of water for other than domestic purposes if such supply would interfere with the sufficiency of the supply of water for domestic purposes.

Price of
water sup-
plied by
meter.

47. The price to be charged by the Council for a supply of water by meter shall not exceed four shillings per thousand gallons. Provided that except as by this Act otherwise expressly provided the Council shall be entitled to charge a minimum sum of fifteen shillings in any quarter of the year for water supplied by meter.

Supply to
houses
partly used
for trade
&c.

48.—(1) The Council shall not be bound to supply with water otherwise than by meter—

- (a) any premises used as a house whereof a part is used by the same occupier for any business trade or manufacturing purpose for which water is required;
- (b) any public institution;
- (c) any hospital sanatorium school club hostel assembly hall place of public entertainment restaurant hotel or licensed premises within the meaning of that expression as used in the Licensing (Consolidation) Act 1910; or
- (d) any boarding house capable of accommodating twelve or more persons including the persons usually resident therein.

10 Edw. 7. &
1 Geo. 5.
c. 24.

(2) Where a supply of water to a farmhouse is used for farming purposes the Council may require that the supply for farming purposes shall be taken by meter but nothing in this subsection shall authorise the Council to refuse a supply of water for domestic purposes to a farmhouse at the rates authorised by or in pursuance of this Act.

(3) The minimum quarterly charge (exclusive of meter rent) for a supply of water by measure to any of the premises in this section mentioned shall be one-fourth of the annual amount which would be payable according to the scale for the time being in force for a supply of water for domestic purposes to a dwelling-house of the same gross value.

49.—(1) Where a person who takes a supply of water for domestic purposes from the Council desires to use the water for horses or for washing carriages or motor cars or for other purposes in stables garages or premises where a horse carriage or motor car is kept the Council may if a hosepipe or other similar apparatus be used charge (except where the water so used is taken by meter) such sum not exceeding twenty-four shillings per annum as they may prescribe and a further sum not exceeding twelve shillings per annum for every horse carriage or motor car beyond the first Provided that if a standpipe or tap be fixed on such premises but no hosepipe or other similar apparatus be used in connection therewith the Council may charge such sums as they may prescribe not exceeding one-half the respective sums chargeable where a hosepipe or other similar apparatus is used.

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PART IV.
—cont.
Charges for
horses and
washing
vehicles.

(2) Any sums chargeable under this section shall be in addition to the rates authorised for the supply of water for domestic purposes and shall be recoverable in all respects with and in the same manner as the said rates.

(3) Where water supplied by the Council to a person who takes a supply both for domestic purposes and by meter for trade or other purposes is used by him by means of a hosepipe or other similar apparatus for horses or for washing carriages or motor cars or for other purposes in stables garages or premises where a horse carriage or motor car is kept the Council may if they think fit require that all water so used by means of any such hosepipe or other apparatus shall be taken by meter and paid for at the rates for the time being in force for the supply of water by meter.

50. If a person who takes a supply of water for domestic purposes from the Council otherwise than by meter desires to use any of the water so supplied for operating—

Charges for
supplies for
refrigerat-
ing appara-
tus &c.

- (a) a water-cooled refrigerating apparatus;
- (b) any apparatus depending while in use upon a supply of continuously running water; or

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PART IV.
---cont.

(c) any apparatus used for softening water which requires water for cleaning regenerating motive power or similar purposes;

the Council may require that all water so used shall be taken by meter:

Provided that nothing in this section shall apply to an apparatus used for softening water if one such apparatus is used and the water softened thereby can be drawn off into a receptacle at one point only and is used solely for domestic purposes.

As to gross
value of two
or more
houses in one
occupation.

51. Where two or more houses or buildings or parts of one or more houses or buildings connected by any internal means of communication or by any bridge subway yard or passage not being a public highway are in the occupation of one and the same company body firm or person they shall be deemed for the purposes of determining the amount of the water rate chargeable by the Council in respect of any supply of water for domestic purposes furnished by the Council to such houses or buildings or parts thereof (being in such single occupation as aforesaid) to be one tenement having a gross value (within the meaning of the section of this Act of which the marginal note is "Rates for supply of water for domestic purposes") equal to the aggregate gross values of the separate houses or buildings or parts of houses or buildings so occupied.

Water rate
&c. may be
collected
with general
rate.

52.—(1) Any water rate or charge payable to the Council may be collected together with the general rate.

(2) The Council may demand water rates and charges by half-yearly instalments in advance on the first day of April and the first day of October in each year but so that the same shall not be recoverable until the expiration of two months from the said first day of April and first day of October respectively.

(3) If the Council exercise the powers of subsection (2) of this section—

(a) every person liable to the payment of such rate or charge who shall cease to occupy the premises in respect of which the rate is paid during any part of the period for which the rate or charge is payable shall not be liable for any part of

such rate or charge after the day on which he ceases to occupy the said premises and if any such person shall have paid any rate or charge for any period for which he is not liable he shall be entitled to repayment thereof by the Council. The water rate or charge or any part thereof respectively payable by any such person in respect of any such premises and unpaid when he ceases to occupy the same shall become payable and be recoverable immediately upon his ceasing to occupy such premises;

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PART IV.
—cont.

- (b) every person who shall commence to occupy any premises in respect of which a rate or charge for the supply of water for domestic purposes is payable after the commencement of the period for which the rate or charge is payable shall pay so much of such rate or charge as is proportionate to the period for which he occupies the premises.

(4) (a) The Council may from time to time if they think fit make an allowance by way of discount not exceeding five per centum on the amount due in respect of any water rate or charge or any instalment thereof from every person who pays the same within such time after demand of the rate or any instalment thereof as the case may be as the Council may prescribe:

Provided that the same rate of discount shall be allowed in similar circumstances to every person from whom such water rate or charge or any instalment thereof shall be demanded.

(b) If and so long as the Council allow such discount notice of the effect of this enactment shall be endorsed on every demand note for water rates and charges.

53. The Council may require that any dwelling-house the supply to which is commenced after the coming into operation of this Act and which is situate on land at a higher level than fifty feet below the draw-off level of the service reservoir from which a supply of water is furnished or to be furnished by them to such dwelling-house shall be provided with a cistern or cisterns capable of containing a total quantity of water sufficient to

Cisterns to be provided for high level supplies.

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PART IV.
—cont.

provide an adequate supply to such dwelling-house for a period of twenty-four hours and the Council shall not be required to supply any such dwelling-house until the same is provided with a cistern or cisterns in conformity with the requirements of this section.

Stop-cocks
&c. to be
fitted in
communica-
tion pipes.

54.—(1) The Council may in cases where the communication pipes are laid by the person requiring a supply of water to any premises or by the Council at the request of such person require such person at the time when the pipes are laid to insert or to have inserted and thereafter to maintain a stop-cock (which expression where used in this section shall include the necessary covers or boxes for giving access and protection thereto) in the communication or service pipe from the said premises in some position to be reasonably approved by the highway authority in the footway of the street in which such pipe is laid or if there be no footway in a position as near as reasonably practicable to the premises supplied and if such person fails to comply with such requirement the Council may insert and maintain a stop-cock in such communication or service pipe and recover the reasonable expenses incurred by them in so doing from such person as a civil debt.

(2) For the purpose of complying with any obligation under this section to insert or to maintain a stop-cock and for the purpose of maintaining any existing stop-cock in a communication or service pipe from any premises within the limits of supply the person liable shall have the like power to open the ground as is conferred upon him by and be subject to the conditions of sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes.

(3) The Council may by agreement with any person liable to insert or to maintain any stop-cock and for that purpose authorised to open or break up any street within the limits of supply execute such works on behalf of such person and any expenses incurred by the Council in so doing shall be repaid by the person with whom the agreement is made and shall be recoverable summarily as a civil debt.

Extension
of power to
inspect
premises.

55. In addition to the powers conferred by section 57 of the Waterworks Clauses Act 1847 the waterworks engineer of the Council or any officer of the Council duly

[1 EDW. 8. &
1 GEO. 6.]

*Wadebridge Rural
District Council Act, 1937.*

[Ch. xcii.]

authorised by him in writing may at all reasonable times between the hours of seven and nine in the morning and also between the hour of four in the afternoon and one hour after sunset enter into any house or premises supplied with water by the Council in order to examine if there be any waste or misuse of such water and if any person hinder any such engineer or authorised person from entering either under the said section 57 or under this section or making such examination as aforesaid he shall for every such offence be liable to a penalty not exceeding five pounds. Provided that no person shall for the same offence have the water supplied to him turned off in pursuance of the said section 57 and also be liable to a penalty under this section.

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PART IV.
—cont.

56. When several houses or other premises or parts of houses or other premises in the occupation of several persons are supplied with water by one common pipe belonging to the several owners or occupiers of such houses or other premises or parts of houses or other premises the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the Council in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the waterworks engineer of the Council or other officer duly authorised in that behalf by the Council.

Maintenance
of common
pipe.

57.—(1) The Council shall not be bound to supply with water more than one house or part of a house occupied as a separate tenement by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house or part of a house occupied as a separate tenement supplied by them with water.

Separate
communica-
tion pipes
may be re-
quired.

(2) If the owner of any house or part of a house occupied as a separate tenement which is supplied with water by the Council when so required in pursuance of the preceding subsection fails within a period of one month after the receipt of such requirement to provide a separate pipe from the main pipe into such house or part of a house the Council may themselves do the work necessary in that behalf and may recover from such owner the cost incurred by them in so doing.

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PART IV.

—cont.

As to communication
pipes.

58.—(1) For the purpose of complying with any obligation under the Waterworks Clauses Acts 1847 and 1863 to maintain or repair any pipe or apparatus used for the supply of water from the waterworks of the Council the person liable to maintain or repair the same shall have the like power to open the ground as is conferred upon him by sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes subject nevertheless to the conditions imposed by those sections.

(2) The Council by agreement with any owner or occupier entitled or required to lay maintain repair or remove any communication pipe or apparatus and for that purpose to open or break up any street in the limits of supply may subject to the like conditions execute such works on behalf of such owner or occupier and subject to the terms of the agreement any reasonable expenses incurred by the Council shall be repaid by the owner or occupier with whom the agreement is made.

Power to
Council to
repair communication
pipes.

59. If in the opinion of the Council any waste of water or injury or risk of injury to person or property is caused or likely to be caused by reason of any injury to or defect in any communication pipe which the Council are not under obligation to maintain it shall be lawful for the Council to execute such repairs to the communication pipe as they may think necessary or expedient in the circumstances without being requested so to do and if any injury to or defect in the communication pipe shall have been found the reasonable charges of the Council for the purposes of ascertaining the injury or defect and executing the repairs (including the expense of breaking up filling in reinstating and making good any road pavement or soil for those purposes) shall be recoverable by the Council in like manner as the water rates in respect of the premises are recoverable Provided that (except in emergency) the Council shall not under the powers of this section enter into any house or private premises unless they shall have given to the occupier of such house or premises (and if the water rates in respect of the house or premises are payable by the owner thereof to such owner) not less than twenty-four hours' previous notice of their intention so to enter.

60. Notwithstanding anything in any Act relating to the Council the Council shall have the exclusive right of executing any works on any of the water mains of the Council for connecting any communication or service pipe therewith and the Council shall on the request of any owner or occupier of any premises who is entitled to be supplied with water by the Council execute on any such main any work which shall be necessary to connect the communication or service pipe of such owner or occupier therewith and any expenses incurred by the Council in so doing shall be repaid by the owner or occupier so requesting.

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PART IV.

—cont.

Council to
connect
communica-
tion pipes
with mains.

61.—(1) Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fitting belonging to the Council or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Council shall (without prejudice to any other right or remedy for the protection of the Council) be liable to a penalty not exceeding five pounds and the Council may in addition thereto recover the amount of any damage by them sustained.

Injuring
meters &c.

(2) In any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fitting belonging to the Council or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Council the Council may enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for ensuring the proper registering by such meter or instrument of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Council by the person so offending and may be recovered by them as water rates are recoverable.

(3) The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Council when such pipe

A.D. 1937. meter instrument or fitting is under the custody or control of the consumer shall be prima facie evidence that such injury alteration prevention abstraction consumption or use (as the case may be) has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fitting.

PART IV.
—cont.

As to
register of
meters.

62.—(1) Where water is supplied by measure the register of the meter or other instrument for measuring water shall be prima facie evidence of the quantity of water consumed and in respect of which any water rate is charged and sought to be recovered by the Council:

Provided that if the Council and the person to whom the water is supplied differ as to the quantity consumed such difference shall be determined upon the application of either party by a court of summary jurisdiction who may also order by which of the parties any costs of the proceedings before them shall be paid and the decision of such court shall be final and binding on all parties.

(2) If any meter used by a consumer of water be proved to register erroneously such erroneous registration shall be deemed to have first arisen at the beginning of the then current quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Council shall be paid by or to the Council to or by the consumer as the case may be and in the case of a surcharge shall be recoverable in the like manner as rates for water are recoverable by the Council.

Notice of
discontinu-
ance.

63. A notice to the Council from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Council.

Penalty for
interfering
with valves
&c.

64. Any person being the owner or occupier of any house or building or part of a house or building or premises to or in respect of which he is not for the time being entitled to a supply or the continuance of a supply of water by the Council who shall without the authority of the Council turn on any valve cock or other work or apparatus attached to any service main or pipe connected with any main of the Council and provided

or available for the purpose of affording such supply shall be deemed to commit an offence under section 60 of the Waterworks Clauses Act 1847. A.D. 1937.

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PART IV.
—cont.

65. Every person who shall wilfully (without the consent of the Council) or negligently close or shut off any valve cock or other work or apparatus belonging to the Council whereby the supply of water shall be interfered with shall (without prejudice to any other right or remedy of the Council) be liable on conviction to a penalty not exceeding five pounds and the Council may in addition thereto recover the amount of any damage by them sustained. Provided that this section shall not apply to a consumer closing the valve fixed on his communication pipe. Penalty for closing valves and apparatus.

66. The Council by their agents or workmen after forty-eight hours' notice in writing under the hand of the waterworks engineer or some other officer of the Council to the occupier or if there be no occupier then to the owner or lessee of any house building or land in which any pipe meter or fitting belonging to the Council is laid or fixed and through or in which the supply of water is from any cause other than the default of the Council discontinued for the space of forty-eight hours may enter such house building or land between the hours of nine in the morning and four in the afternoon or at any other time with the authority in writing of a justice for the purpose of removing and may remove every such pipe meter and fitting repairing all damage caused by such entry or removal. Power to remove meters and fittings.

67. The Council may enter into and carry into effect agreements with any local authority body company or person for the supply of water beyond the limits of supply to any such authority body company or person respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon: Contracts for supplying water in bulk.

Provided that such supply shall not be given except with the consent of any authority body company or person supplying water under parliamentary authority within the area to be supplied and of the local authority of the district comprising that area nor if and so long as such supply would interfere with the supply of water within the limits of supply.

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PART IV.

—cont.

Purchase
of water in
bulk.

68. The Council may enter into and carry into effect agreements with any local authority body company or person supplying water under parliamentary authority and with the approval of the Minister in the case of any water intended for domestic consumption with any other local authority body company or person for the purchase of water in bulk by the Council for such price and on such terms and conditions and for such period as may be agreed upon and any water so purchased may be used by the Council for the purposes of the water undertaking.

PART V.

FINANCIAL.

Power to
borrow.

69.—(1) The Council shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 from time to time to borrow without the consent of any sanctioning authority for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall pay off all moneys so borrowed within such periods as the Council may determine not exceeding the respective periods mentioned in the third column of the said table (namely):—

1.	2.	3.
Purpose.	Amount.	Period for repayment.
(a) The purchase of lands and easements and payment of compensation under this Act.	£ 4,672	Sixty years from the date or dates of borrowing.
(b) The construction of the waterworks authorised by this Act.	45,253	Fifty years from the date or dates of borrowing.
(c) Water mains and other waterworks purposes.	33,840	Fifty years from the date or dates of borrowing.
(d) Working capital for the water undertaking.	3,000	Ten years from the date or dates of borrowing.
(e) The payment of the costs charges and expenses of this Act.	The sum requisite.	Five years from the passing of this Act.

(2) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Part of this Act shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purpose of the said Part IX.

A.D. 1937.
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PART V.
—cont.

70. Sections 213 and 214 of the Act of 1933 shall apply with respect to any sinking fund formed by the Council for the repayment of any money borrowed (otherwise than by the issue of stock) before the coming into operation of this Act under any statutory borrowing power as if it had been borrowed by way of mortgage and the Council shall make such adjustments of any existing funds as may be proper.

Application
of Act of
1933 to
existing
sinking
funds.

71. Notwithstanding anything contained in this or any other Act the Council may use for the purpose of any statutory borrowing power exercisable by them any moneys forming part but not for the time being required for the purposes of any fund accumulated for the redemption of debt or as a reserve renewals depreciation accident or other similar fund (in this section referred to as "the lending fund") subject to the following conditions:—

Use of
moneys
forming part
of sinking
and other
funds.

- (1) The moneys so used shall be repaid out of the general rate fund within the period and by the methods within and by which a loan raised under the statutory borrowing power would be repayable:

Provided that the Council shall repay to the lending fund the moneys so used or the balance thereof for the time being outstanding as the case may be as and when the same shall be required for the purposes of the lending fund and may if they so resolve repay the same at any time within the period aforesaid and in either case the repayment shall be made out of the fund rate or revenue aforesaid or out of moneys which would have been applicable to the repayment of a loan if raised under the statutory borrowing power:

A.D. 1937.

PART V.
—cont.

(2) In the accounts of the general rate fund an amount equal to interest on any moneys so used and for the time being not repaid calculated at such rate per centum per annum as may be determined by the Council to be equal as nearly as may be to the rate of interest which would be payable on a loan raised on mortgage under the statutory borrowing power shall be credited to the lending fund and debited to the undertaking or purpose with reference to which the moneys are so used :

(3) The statutory borrowing power shall be deemed to be exercised by such use as fully in all respects as if a loan of the same amount had been raised in exercise of the power and the provisions of any enactment as to re-borrowing of sums raised under the statutory borrowing power shall apply accordingly.

Power to
suspend
sinking
fund.

72. Notwithstanding anything contained in any Act it shall not be obligatory upon the Council to commence before the thirty-first day of March nineteen hundred and forty-two the repayment by sinking fund or otherwise of any moneys borrowed for the purchase of lands and easements and for the construction of the works authorised by this Act.

Closing of
registers.

73.—(1) The Council may close any transfer books or the registers of transfers of authorised securities (other than stock) during the whole of the period of thirty days or any shorter period next before the date on which interest on the authorised securities to which such transfer book or register relates is payable.

(2) The persons who on the date upon which the transfer book or register is closed are entered therein as holders of any security of the class to which such transfer book or register relates shall be entitled to the interest next payable thereon.

Receipts
and
expenses.

74.—(1) Notwithstanding anything contained in any enactment all money received by the Council whether on capital or revenue account including (but without prejudice to the generality of this provision)—

(a) all money received by the Council on account of the water undertaking and any other

undertaking of the Council as from time to time existing from which revenue is derived; A.D. 1937.

- (b) interest and other annual proceeds from time to time received by the Council on the investments or balances forming part of any fund accumulated for the redemption of debt or as a reserve renewals depreciation contingency insurance or other similar fund including any interest payable in pursuance of the section of this Act of which the marginal note is "Use of moneys forming part of sinking and other funds"; and

- (c) all money received by the Council in respect of the special services;

shall be carried to and form part of the general rate fund and all payments and expenses made and incurred by the Council in respect of any of the said undertakings or the special services or in carrying into execution the powers and provisions of this or any other Act (including interest on moneys borrowed by the Council and all sums required by law to be paid or transferred or which the Council may determine to pay apply or transfer to any such fund as is referred to in paragraph (b) of this subsection) shall be paid or transferred out of the general rate fund:

Provided that in the accounts of the Council—

- (i) an amount equivalent to the interest and other annual proceeds as aforesaid shall (subject in the case of any of the said funds to any prescribed limit on the amount thereof) be credited to the fund on the investments of which the same is received;
- (ii) an amount equivalent to the money received by the Council in respect of the special services shall be credited to and an amount equivalent to the payments and expenses made and incurred by the Council in respect of the special services shall be debited against the specified parishes.

(2) Nothing in this section shall authorise the Council to apply capital money to any purpose other

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PART V.
—cont.Accounts of
under-
takings and
special
services.

than a purpose to which capital money is properly applicable or to levy any rate other than a special rate to meet expenses incurred in respect of special services.

75.—(1) The Council shall keep their accounts so as to distinguish capital from revenue and as to revenue so as to show under a separate heading or division in respect of each of the undertakings of the Council as from time to time existing (each of which is in this section separately referred to as “the undertaking”) and in respect of each of the special services on the one side all receipts in respect of the undertaking (including the income from any such fund as is referred to in paragraph (b) of subsection (1) of the last preceding section of this Act authorised in connection with the undertaking) or special service and on the other side all payments and expenses in respect of the undertaking or special service such payments and expenses being divided so as also to show in each case the amounts representing—

- (a) The working and establishment expenses and cost of maintenance of the undertaking or the provision of the special service;
- (b) The interest on moneys borrowed by the Council for the purposes of or connected with the undertaking or special service or used for these purposes in pursuance of the section of this Act of which the marginal note is “Use of moneys forming part of sinking and other funds”;
- (c) The requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of or connected with the undertaking or special service;
- (d) In the case of the water undertaking the repayment to the rate or fund out of which any deficiencies in the water undertaking in previous years may have been contributed of the amount of such deficiencies;
- (e) All other expenses (if any) of the undertaking and special service properly chargeable to revenue; and
- (f) Any money expended on or applied for any of the purposes mentioned in the section of this Act of which the marginal note is “Application of revenue of undertakings &c.”

(2) Whenever the money received by the Council from the water undertaking on account of revenue in any year shall exceed the amount expended or set aside in connection with that undertaking in respect of the several purposes mentioned in subsection (1) of this section then the charges of the Council for the supply of water to be made and charged in the next succeeding year shall be reduced in such manner as the Council think fit to an extent equivalent to the amount of such excess. Provided that if owing to an increase in the estimated expenditure or to a reduction in the estimated revenue for the said next succeeding year the amount of such excess or any part thereof will be required in order that the revenue may not be less than the amount to be expended or set aside the reduction in charges may be such only as will reduce the revenue by the amount of the balance of such excess.

A.D. 1937.

—
PART V.
—cont.

(3) Whenever the amount expended or set aside in connection with the water undertaking in respect of the several purposes mentioned in subsection (1) of this section shall exceed the money received by the Council from the water undertaking the amount of such excess shall be defrayed during any financial year in the manner directed by the Act of 1936 with respect to special expenses incurred in the execution of that Act by a rural authority and as if the parishes comprised within the limits of supply and any other parish or part of a parish which may from time to time be supplied by the Council with water by means of the works authorised by this Act (or if the Council by resolution so determine so much of the district as consists of areas which were comprised within the district on the first day of January one thousand nine hundred and thirty-seven) were the contributory place on which such expenses were charged. Provided that nothing in this paragraph shall prejudice or affect the operation of section 190 of the Act of 1933.

(4) The Council shall show in their accounts relating to any undertaking or special service all items (including receipts and payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the undertaking or special service.

A.D. 1937.

PART V.
—cont.

(5) In all cases in which the Council keep separate accounts for separate purposes they shall so far as reasonably practicable apportion between those accounts or carry to any of them any receipts credits payments and liabilities which from time to time ought to be so apportioned or carried.

Application
of revenue
of under-
takings &c.

76.—(1) If in any year the moneys received by the Council on account of the revenue of any undertaking of the Council as from time to time existing (including the income from any such fund as is referred to in paragraph (b) of subsection (1) of the section of this Act of which the marginal note is "Receipts and expenses" and as is authorised in connection with the undertaking) or special service shall exceed the moneys paid applied or expended by the Council in respect of that undertaking or special service for the several purposes mentioned in paragraphs (a) (b) (c) and (e) of subsection (1) of the section of this Act of which the marginal note is "Accounts of undertakings and special services" the Council may in respect of that year (if they think fit) apply out of the general rate a sum not exceeding the amount of such excess to any of the following purposes:—

- (a) In reduction of capital moneys borrowed for the purposes of the undertaking or special service;
- (b) In the construction renewal extension or improvement of the works and conveniences for the purposes of the undertaking or special service;
- (c) In providing a reserve fund in respect of each of the undertakings or for any special service in respect of which moneys may have been borrowed by setting aside such an amount as they may from time to time think reasonable and (unless the amounts so set aside are used under the provisions of the section of this Act of which the marginal note is "Use of moneys forming part of sinking and other funds") investing the same in statutory securities until the reserve fund so provided amounts to the maximum for the time being prescribed by

[1 EDW. 8. & Wadebridge Rural [Ch. xcii.]
1 GEO. 6.] District Council Act, 1937.

the Council but not exceeding a sum equal to one-tenth of the aggregate capital expended for the time being upon that undertaking or special service.

A.D. 1937.

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PART V.
—cont.

(2) The Council shall in every year so long as any reserve fund provided under this section is less than the maximum prescribed thereunder transfer to that reserve fund out of the general rate fund an amount equal to the interest and other annual proceeds received by the Council in respect of or on investments forming part of the reserve fund and carried to the general rate fund :

Provided that the powers referred to in paragraphs (a) and (b) of subsection (1) of this section shall not be available in the case of the water undertaking.

77.—(1) Any reserve fund formed under paragraph (c) of subsection (1) of the section of this Act of which the marginal note is "Application of revenue of undertakings &c." shall be applicable to answer any deficiency at any time happening in the income of the Council from the undertaking or special service in respect of which it is formed or to meet any extraordinary claim or demand at any time arising against the Council in respect of that undertaking or special service or for payment of the cost of renewing improving or extending any part of the works forming part thereof or otherwise for the benefit of that undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

Provisions
as to reserve
funds &c.

(2) Resort may be had to any such reserve fund although such fund may not at the time have reached or may have been reduced below the prescribed maximum.

(3) When under the provisions of this Act or of any other Act of Parliament or of any Order confirmed by or having the effect of an Act of Parliament whether passed confirmed or made before or after the coming into operation of this Act the Council are empowered or required to form a reserve renewals or repairs fund they may (in addition to any other powers for the time being vested in them) invest such fund and the interest on the investments of such fund in statutory securities.

A.D. 1937.

PART V.
—cont.Provisions
as to excess
or deficiency
of revenue
for special
services.

78.—(1) If in any year the accounts of the special services kept under the section of this Act of which the marginal note is “Accounts of undertakings and special services” shall show that the revenue of any of the special services in respect of that year (including the interest and other annual proceeds received by the Council in respect of that year on the investments forming part of any reserve fund established in connection with that special service) has exceeded the total amount of the payments and expenses in respect of the year for the several purposes mentioned in paragraphs (a) to (f) of subsection (1) of the last-mentioned section then such amount of the said excess as the Council may think fit shall be deemed for the purposes of that section to be the revenue of the said special purpose for the next following year and the said amount shall be carried forward in the said accounts to the credit of the specified parishes in the said year.

(2) If in any year the accounts of the special services kept under the last-mentioned section of this Act shall show that the revenue of any of the special services in respect of that year (including the interest and other annual proceeds received by the Council in respect of that year on the investments forming part of any reserve fund established in connection with that special service) has been less than the total amount of the payments and expenses in respect of the year for the several purposes mentioned in paragraphs (a) to (e) of subsection (1) of the last-mentioned section then the amount of the deficiency shall (subject to the provisions of section 190 of the Act of 1933) be carried forward in the said accounts to the debit of the specified parishes in the next following year.

Date of
operation of
certain sec-
tions.

79. The sections of this Act of which the marginal notes are—

- “Receipts and expenses”;
- “Accounts of undertakings and special services”;
- “Application of revenue of undertakings &c.”;
- “Provisions as to reserve funds &c.”;
- “Provisions as to excess or deficiency of revenue for special services”;

shall be deemed to have come into operation on the first day of April one thousand nine hundred and thirty-seven.

PART VI.

A.D. 1937.

MISCELLANEOUS.

80. If a justice is satisfied on complaint by any rating officer that any person is quitting or about to quit any premises in the district and has failed to pay on demand any general rate or water rate or charge which may be due from him and intends to evade payment of the same by departing from the district the justice may in addition to issuing a summons for non-payment of the same issue a warrant under his hand authorising the said rating officer or other authorised officer to seize forthwith and detain the goods and chattels of such person until the complaint is determined upon the return of the summons.

Recovery of rate from persons removing.

81. The sections of the Act of 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable thereto (that is to say):—

Application of certain provisions of Act of 1936.

Section 275 (Power of local authority to execute certain work on behalf of owners or occupiers);

Section 283 (Notices to be in writing; forms of notices &c.);

Section 284 (Authentication of documents);

Section 285 (Service of notices &c.);

Section 286 (Proof of resolutions &c.);

Section 293 (Recovery of expenses &c.);

Section 296 (Summary proceedings for offences);

Section 297 (Continuing offences and penalties);

Section 299 (Inclusion of several sums in one complaint &c.);

Section 304 (Judges and justices not to be disqualified by liability to rates);

Section 328 (Powers of Act to be cumulative).

82. As respects byelaws made under this Act the confirming authority for the purposes of section 250 of the Act of 1933 shall be the Minister.

As to bye-laws.

A.D 1937.

PART VI.

—cont.

Damages
and charges
to be settled
by court.

83. Where any damages expenses or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by the court before whom any offender is convicted.

Saving for
indictments
&c.

84. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act. Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

Application
of section
265 of Pub-
lic Health
Act 1875.

38 & 39 Vict.c. 55.

Inquiries by
Minister.

85. Section 265 of the Public Health Act 1875 which relieves local authorities and their officers from personal liability shall extend and apply to the purposes of this Act as if the same were re-enacted therein.

86. The Minister may hold such inquiries as he may consider necessary in regard to the exercise of any powers conferred upon him or the giving of consents under this Act and section 290 of the Act of 1933 shall apply accordingly.

Arbitration.

87. Where under this Act any question or dispute is to be referred to or determined by an arbitrator or arbitration (other than questions or disputes to which the provisions of the Lands Clauses Acts apply) then unless other provision is made the reference shall be to a single arbitrator to be agreed upon between the parties or failing agreement appointed by the President of the Institution of Civil Engineers on the application of any party to the dispute (after notice in writing to the other or others of them) and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to the reference.

Saving
rights of
Duchy of
Cornwall.

88. Nothing in this Act shall authorise the Council to take use enter upon or interfere with any land soil or water or any rights in respect thereof belonging to His Majesty in right of the Duchy of Cornwall except with

[1 EDW. 8. & Wadebridge Rural [Ch. xcii.]
1 GEO. 6.] District Council Act, 1937.

the consent in writing of at least two of such of the regular officers of the said duchy or of such other persons as are duly authorised under section 39 of the Duchy of Cornwall Management Act 1863 to exercise all or any of the rights powers privileges and authorities by the said Act made exerciseable or otherwise for the time being exerciseable in relation to the said duchy or belonging to the Duke of Cornwall for the time being without the consent of such Duke testified in writing under the seal of the Duchy of Cornwall first had and obtained for that purpose or to take away diminish alter prejudice or affect any property rights profits privileges powers or authorities vested in or enjoyed by His Majesty in right of the Duchy of Cornwall or in or by the Duke of Cornwall for the time being.

A.D. 1937.

—
PART VI.

—cont.
26 & 27 Vict.
c. 49.

89. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council out of the general rate fund and general rate or out of moneys to be borrowed under this Act for that purpose and such portion as the Council think fit of the loan charges payable in respect of the moneys raised for the purposes of this section shall be debited to the water undertaking.

Costs of Act.

A.D. 1937.

The SCHEDULE referred to in the
foregoing Act.

Stamp.

Ten
shillings.

AN AGREEMENT made the twenty-seventh day of April one thousand nine hundred and thirty-seven between the WADEBRIDGE RURAL DISTRICT COUNCIL (hereinafter called "the Council") of the one part and the BODMIN WATERWORKS COMPANY (hereinafter called "the Company") of the other part.

WHEREAS :

- (a) The Company are empowered by the Bodmin Waterworks Act 1866 and the Bodmin Water Act 1893 to supply water within limits of supply which include (inter alia) the borough of Bodmin;
- (b) The Cornwall County Council (hereinafter called "the county council") are the owners of a mental hospital situate within the said borough and the Company supply the said hospital with water upon terms and conditions prescribed by section 37 of the Bodmin Water Act 1893 under which the Company are bound in perpetuity to afford any supply required by the hospital not exceeding a quantity of forty thousand gallons in any day of twenty-four hours and in the event of the county council requiring more than that quantity in any day and the Company supplying the same the Company are entitled to charge at the rate of one shilling per thousand gallons for all water so supplied beyond the quantity of forty thousand gallons in any day;
- (c) The Company have a seven inch water main (hereinafter called "the seven inch main") leading from Dunmere Bridge which passes near the site of the said hospital;
- (d) The Council are promoting in the present session of Parliament a Bill (hereinafter referred to as "the Bill") whereby they seek power to construct and maintain certain waterworks and to supply water within the limits described in the Bill and the Council if the Bill is passed and the works thereby proposed to be authorised are constructed will be in a position to afford to the Company at Dunmere Bridge aforesaid or at such other point on the seven inch main as is hereinafter mentioned such a supply of water as is hereinafter provided for and to deliver the same at a pressure which will enable the Company to supply water to the said hospital at a greater pressure than at present;

Now it is hereby agreed between the parties hereto as A.D. 1937.
follows :—

1. From and after the time at which the Council shall have completed such of the works proposed to be authorised by the Bill as shall be necessary for the purpose the Council shall except when prevented by drought accident or other unavoidable cause supply to the Company such quantity (if any) of water as the Company may from time to time require up to a quantity not exceeding forty thousand gallons in any period of twenty-four hours and the Council shall also supply to the Company any further quantity of water which the Company may require in any period of twenty-four hours in excess of forty thousand gallons if and so far as the Council shall have such further quantity of water available without interfering with other supplies afforded by the Council.

2. All water so to be supplied shall be pure and wholesome and shall be delivered by the Council to the Company into the seven inch main at such point in Dunmere Road between Dunmere Bridge and the junction of Dunmere Road with the road formerly called Boundary Road as may be agreed upon between the parties hereto The pressure at which the said water shall be delivered shall be not less than that required to raise the water to a level of five hundred feet above ordnance datum and not more than that required to raise the water to a level of five hundred and fifty feet above ordnance datum.

3. The water supplied by the Council hereunder may be used by the Company for any purpose to which the Company may think fit to apply the same except that if and so far as a supply of any quantity of water shall be needed for the said hospital in case of fire or when the water which the Company have available from other sources is insufficient to meet the needs of the said hospital in full such water shall be taken by the Company from the Council and shall be used by the Company for the purpose of supply to the said hospital in priority to any other purpose.

4. The water to be supplied by the Council hereunder shall be measured in such manner and by such apparatus as may be agreed upon between the parties hereto or as failing such agreement may be determined by arbitration in manner hereinafter provided.

5. All such works and apparatus as the Company may reasonably require to add to their existing system of works (a) for constructing a junction or junctions between the Council's pipe and the seven inch main and/or elsewhere (b) for enabling the water obtained from the Council hereunder to be supplied by the Company to the said hospital (c) for measuring the water so obtained from the Council (d) for protecting the supplies afforded by the Company to premises other than the said hospital and protecting the seven inch main and the other works of the Company against risk of injury through a pressure of water greater

A.D. 1937. — than they can safely take and (e) for assuring to the said hospital at times of fire the full pressure at which the water is delivered by the Council to the Company except so far as such pressure may be more than can safely be taken by the seven inch main and the other works of the Company shall be constructed by the Company in such manner as may be agreed between the engineer for the time being of the Company and the engineer for the time being of the Council or as failing such agreement may be determined by arbitration in manner hereinafter provided and the reasonable cost of the said works and apparatus shall be repaid to the Company by the Council :

Provided that nothing in this clause shall be deemed to prevent the Company from mixing the waters obtained from the Council with water supplied from their own sources.

6. If it should be required by the county council or their visiting committee on their behalf and prove necessary in order to utilise as fully as possible the pressure available from the Council's supply system that the Company should scrape the seven inch main the cost of such scraping shall be repaid to the Company by the Council.

7. The Company shall pay the Council for all water supplied hereunder up to a quantity of forty thousand gallons in any period of twenty-four hours at the rate of ninepence per thousand gallons and for all water supplied hereunder in excess of a quantity of forty thousand gallons in any period of twenty-four hours at the rate of tenpence and one halfpenny per thousand gallons :

Provided that any water so supplied which is required for use for fire extinction purposes at the said hospital shall be supplied by the Council to the Company and by the Company to the county council or their visiting committee on their behalf free of charge.

8. Nothing in this agreement shall prejudice or affect the rights of the Company to continue at all times to use the seven inch main for the purposes of supplies within their limits of supply.

9. An account of any sum due from the Company to the Council hereunder in respect of any quarter ending March 31st June 30th September 30th or December 31st shall be sent by the Council to the Company within one month after the expiration of such quarter and the sum so due shall be paid by the Company to the Council within two months after receipt of such account.

10. Any matter hereinbefore required to be referred to arbitration and any difference which may at any time arise between the parties hereto as to the meaning or effect of these presents or as to anything to be done or not to be done in pursuance of this agreement shall be referred to the arbitration of a single arbitrator to be agreed upon by the parties hereto or failing agreement to be

[1 EDW. 8. & Wadebridge Rural [Ch. xcii.]
1 GEO. 6.] District Council Act, 1937.

appointed by the President of the Institution of Civil Engineers A.D. 1937.
on the application of either party after notice in writing to the
other party and in other respects the provisions of the Arbitration
Acts 1889 to 1934 or any statutory modification thereof for the
time being in force shall apply to such reference.

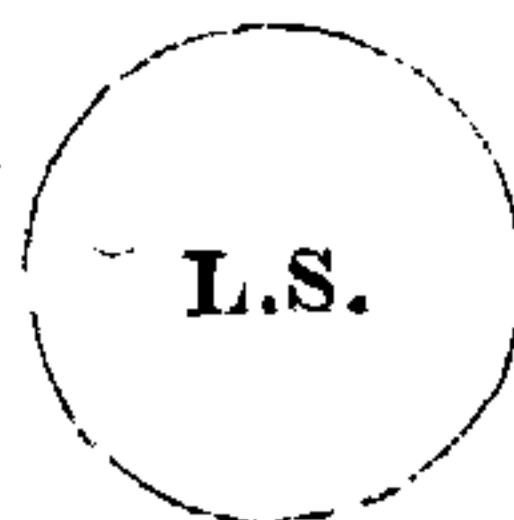
11. This agreement is made subject—

(a) to confirmation by Parliament under the Bill and subject
to such alterations (if any) as Parliament may think fit
to make therein but if the committee of either House
of Parliament to whom the Bill may be referred shall
make any material alteration in this agreement it shall
be competent to either party thereto to withdraw
therefrom; and

(b) to an agreement being made between the Council and
the county council or their visiting committee on their
behalf providing for payments by the county council
or such committee to the Council in consideration of
supplies of water being made available under this
agreement for use at the said hospital.

In witness whereof the parties hereto have caused their
respective common seals to be hereunto affixed the day and
year first above written.

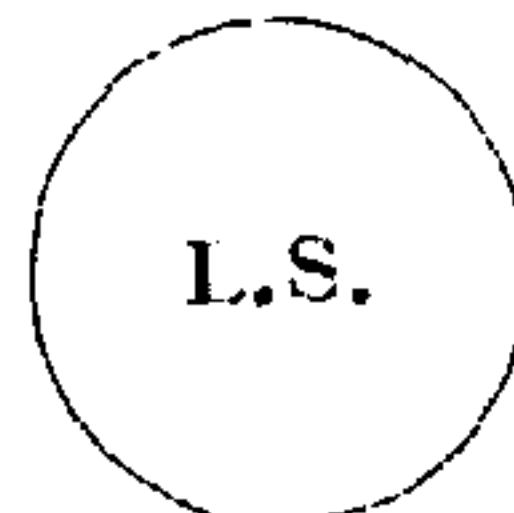
The common seal of the WADEBRIDGE
RURAL DISTRICT COUNCIL was hereunto
affixed in the presence of—



W. SYMONS Chairman.

W. E. BLACKWELL Clerk.

The common seal of the BODMIN WATER-
WORKS COMPANY was hereunto affixed
in the presence of—



JOHN PETHYBRIDGE }
GEORGE HELLEN } Directors.
NORMAN PHILLIPS Secretary.

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